

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 2, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 22CV02216

S.C. v. COUNTY OF SANTA CRUZ, et al.

DEFENDANT PARENTS CENTER’S MOTION TO BE RELIEVED

The court intends to grant the unopposed motion and sign the order submitted by counsel, but either a representative from Parents Center or replacement counsel is ordered to appear at the hearing (in person or by Zoom).

No. 26CV00235

WELLS FARGO, N.A. v. THAYER

(UNOPPOSED) PLAINTIFF’S MOTION FOR SUMMARY JUDGMENT

The unopposed motion is granted. Judgment will be entered in favor of plaintiff.

I. BACKGROUND

This is a limited jurisdiction collection matter filed by plaintiff Wells Fargo, N.A. against defendant Tyler Thayer seeking \$6,214.94 for an unpaid credit card debt. There are two causes of action for breach of contract. Defendant, who is self-represented, filed an answer and affirmative defenses. Despite proper service, defendant did not oppose the motion.

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II. UNDISPUTED MATERIAL FACTS

Defendant applied for and was issued a Wells Fargo credit card (subject account) ending in 0598. (Plaintiff's Separate Statement of Undisputed Material Facts ("UF"), No. 1, 15.) Plaintiff sent defendant the credit card along with the written customer agreement associated with the credit card. (UF 2, 16.) Defendant accepted the terms of the written agreement when he used the Wells Fargo Credit Card. (UF 3, 17.) Pursuant to the terms of the customer agreement associated with the card, plaintiff would extend credit to defendant whereby defendant could charge goods, services, or obtain cash advances on the credit line (UF 4, 18.) In exchange, defendant was to repay the principal amount lent plus applicable interest and finance charges. (UF 5, 19.)

In accordance with the customer agreement, defendant used the account, and made payments, charges, and incurred a balance thereon. (UF 6, 20.) Plaintiff sent defendant monthly statements of the subject account each and every billing period. (UF 7, 21.) The statements of the account reflected all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period. (UF 8, 22.) There is no record of any unresolved disputes on the account. (UF 9, 23.) There is no record of any active lawsuits against Wells Fargo Bank, N.A. for unresolved disputes on this credit card account. (UF 10, 24.) Defendant's last payment on the subject account was on March 21, 2025. (UF 11, 25.) Thereafter, no further payments were made by the defendant, and therefore, pursuant to the terms of the customer agreement, defendant was in default. (UF 12, 26.) The balance due on defendant's subject account is \$6,214.94. (UF 13, 27.) As a result of defendant's unpaid balance, plaintiff has been damaged in the sum of \$6,214.94. (UF 14, 28.)

III. SUMMARY JUDGMENT LEGAL STANDARDS

In a summary judgment motion, the court must determine from the evidence presented that "there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law..." (Code Civ. Proc., § 437c, subd. (c).)¹ In making this determination, the court may rely on "affidavits, declarations ... and matters of which judicial notice shall or may be taken." (§ 437c, subd. (b).) The plaintiff "may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto." (§ 437c, subd. (p)(2).)

A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action. (§ 437c, subd. (p); *Scalf v. D. B. Log Homes, Inc.* (2005) 128

¹ All statutory references are to the Code of Civil Procedure unless otherwise stated.

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Cal.App.4th 1510, 1519; *California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.) The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue. (*Ibid*). Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary judgment or adjudication as a matter of law. (§ 437c, subd. (c); *Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. If the moving party carries this burden, it causes a shift and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Each material fact must have a citation to supporting evidence. (§ 437c, subd. (b)(1).) If a triable issue is raised as to any of the facts in the separate statement, the motion may be denied. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

IV. DISCUSSION

The court finds the above facts are sufficient to satisfy the elements of plaintiff’s claims. The burden therefore shifts to defendant to show that a triable issue of one or more material facts exists as to the causes of action or a defense thereto. Defendant has failed to meet this burden as he has not filed an opposition and raised any triable issue of disputed fact. Plaintiff is therefore entitled to judgment against defendant in the amount of \$6,214.94.

No. 26CV01419

STEIN v. B.W. PLUS SCOTTS VALLEY INN LLC

DEFENDANT’S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

The motion is granted. Plaintiff is ordered to submit her individual claims to arbitration, and this action is stayed pending its result. Plaintiff’s class claims have been waived.